



OFFICE OF THE POLICE COMMISSIONER

ONE POLICE PLAZA • ROOM 1400

August 24, 2009

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Hector Vargas**
Tax Registry No. 911407
70 Precinct
Disciplinary Case No. 81929/06

The above named member of the service appeared before Assistant Deputy Commissioner John Grappone on January 23, 2009, and was charged with the following:

DISCIPLINARY CASE NO. 81929/06

1. Said Police Officer Hector Vargas, assigned to the 70th Precinct, while off-duty, on or about July 15, 2005, at a location known to this Department, in Richmond County, did intentionally and for no legitimate purpose, forcibly touch the sexual or other intimate part of another person, for the purpose of degrading or abusing such person; or for the purpose of gratifying the actor's sexual desire.

P.G. 203-10, Page 1, Paragraph 5
N.Y.S. PENAL LAW SECTION 130.52(1)

GENERAL REGULATIONS
FORCIBLE TOUCHING

2. Said Police Officer Hector Vargas, assigned to the 70th Precinct, while off-duty, on or about November 24, 2005, at a location known to this Department, in Richmond County, did intentionally and for no legitimate purpose, forcibly touch the sexual or other intimate part of another person, for the purpose of degrading or abusing such person; or for the purpose of gratifying the actor's sexual desire.

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GENERAL REGULATIONS
FORCIBLE TOUCHING

3. Said Police Officer Hector Vargas, assigned to the 70th Precinct, while off-duty, on or about July 15, 2005, at a location known to this Department, in Richmond County, did subject another person to sexual contact without the latter's consent

P.G. 203-10, Page 1, Paragraph 5
N.Y.S. PENAL LAW SECTION 130.55

GENERAL REGULATIONS
SEXUAL ABUSE IN THE
THIRD DEGREE

4. Said Police Officer Hector Vargas, assigned to the 70th Precinct, while off-duty, on or about November 25, 2005, at a location known to this Department, in Richmond County, did subject another person to sexual contact without the latter's consent

P.G. 203-10, Page 1, Paragraph 5
N.Y.S. PENAL LAW SECTION 130.55

GENERAL REGULATIONS
SEXUAL ABUSE IN THE
THIRD DEGREE

5. Said Police Officer Hector Vargas, assigned to the 70th Precinct, while off-duty, on or about and between September 11, 2001 and May 11, 2006, in the confines of Kings County, did engage in conduct prejudicial to the good order, efficiency, and discipline of the Department, in that said Police Officer did maintain in his possession a DPMS Inc. Model A-15 .223 caliber rifle, Serial No. 25122, defined as an "Assault Weapon" by the New York City Administrative Code Section 10-303.1(a). (As amended)

P.G. 203-10, Page 1, Paragraph 5

GENERAL REGULATIONS

6. Said Police Officer Hector Vargas, assigned to the 70th Precinct, while off-duty, on or about July 15, 2005, Richmond County, did engage in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer did inappropriately touch the breast of another person, known to this Department. (As amended)

P.G. 203-10, Page 1, Paragraph 5

GENERAL REGULATIONS

7. Said Police Officer Hector Vargas, assigned to the 70th Precinct, while off-duty, on or about November 24, 2005, Richmond County, did engage in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer did inappropriately touch the buttocks of another person, known to this Department. (As amended)

P.G. 203-10, Page 1, Paragraph 5

GENERAL REGULATIONS

8. Said Police Officer Hector Vargas, on or about and between October 11, 1987 and October 10, 1990, in Richmond County, did commit a criminal sexual act upon a person known to this Department, in that said Police Officer did engage in oral sexual conduct with a party who was less than eleven years old, to wit: the penis of said Police Officer did contact the mouth of said person known to this Department. (As amended)

N.Y.S. PENAL LAW SECTION 130.50(3)

**CRIMINAL SEXUAL ACT IN THE
FIRST DEGREE**

9. Said Police Officer Hector Vargas, on or about and between October 11, 1987 and October 10, 1990, in Richmond County, did commit sexual abuse upon a person known to this Department, in that said Police Officer did engage in sexual contact with a party who was less than eleven years old, to wit: the penis of said Police Officer did contact the hands of said person known to this Department. (As amended)

N.Y.S. PENAL LAW SECTION 130.65(3)

**SEXUAL ABUSE IN THE FIRST
DEGREE**

10. Said Police Officer Hector Vargas, on or about and between October 11, 1987 and October 10, 1990, in Richmond County, did commit a course of sexual conduct against a child, in that said Police Officer did commit one or more acts of oral sexual conduct with a person known to this Department, who was less than eleven years old. (As amended)

N.Y.S. PENAL LAW SECTION 130.75(1)(a)

**COURSE OF SEXUAL CONDUCT
AGAINST A CHILD IN THE FIRST
DEGREE**

11. Said Police Officer Hector Vargas, on or about and between October 11, 1987 and October 10, 1990, in Richmond County, did commit a course of sexual conduct against a child, in that said Police Officer did commit one or more acts of oral sexual conduct and/or sexual contact with a person known to this Department, who was less than eleven years old. (As amended)

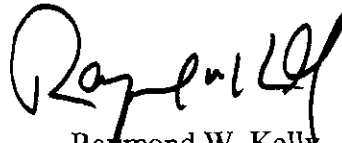
**N.Y.S. PENAL LAW SECTION 130.80(1)(a) COURSE OF SEXUAL CONDUCT
AGAINST A CHILD IN THE SECOND
DEGREE**

12. Said Police Officer Hector Vargas, on or about and between October 11, 1998 and October 10, 1999, in Richmond County, did with the intent to harass, annoy, or alarm another person, threaten physical contact against a person known to this Department, in that said Police Officer did threaten to kill said person known to this Department. (As amended)

**N.Y.S. PENAL LAW SECTION 240.26(1) HARASSMENT IN THE SECOND
DEGREE**

In a Memorandum dated June 23, 2009, Assistant Deputy Commissioner Grappone found the Respondent Not Guilty of Specification Nos. 1, 2, 3, 4, 6, 7, 8, 9, 10, 11 and 12, and Guilty of Specification No. 5. Having read the Memorandum and analyzed the facts of this matter, I approve the findings, but disapprove the penalty.

The Respondent's assertion of a mistaken belief that he could possess an assault weapon within New York City is not credible, especially given his tenure with the Department at the time of the purchase, coupled with his apparent failure to perform even a cursory review of the applicable law regarding such possession. Therefore, the Respondent is to forfeit twenty (20) Vacation days, as a disciplinary penalty.



Raymond W. Kelly
Police Commissioner



POLICE DEPARTMENT

June 23, 2009

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Hector Vargas
Tax Registry No. 911407
70 Precinct
Disciplinary Case No. 81929/06

The above-named member of the Department appeared before me on January 23, 2009, charged with the following:¹

1. Said Police Officer Hector Vargas, assigned to the 70th Precinct, while off-duty, on or about July 15, 2005, at a location known to this Department, in Richmond County, did intentionally and for no legitimate purpose, forcibly touch the sexual or other intimate part of another person, for the purpose of degrading or abusing such person; or for the purpose of gratifying the actor's sexual desire.

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P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS
N.Y.S. PENAL LAW SECTION 130.55 – SEXUAL ABUSE IN THE
THIRD DEGREE

¹ Written summations were submitted on February 27, 2009.

4. Said Police Officer Hector Vargas, assigned to the 70th Precinct, while off-duty, on or about November 25, 2005, at a location known to this Department, in Richmond County, did subject another person to sexual contact without the latter's consent.

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS
N.Y.S. PENAL LAW SECTION 130.55 – SEXUAL ABUSE IN THE
THIRD DEGREE

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N.Y.S. Penal Law Section 130.50(3) – CRIMINAL SEXUAL ACT IN THE
FIRST DEGREE

9. Said Police Officer Hector Vargas, on or about and between October 11, 1987 and October 10, 1990, in Richmond County, did commit sexual abuse upon a person known to this Department, in that said Police Officer did engage in sexual contact with a

party who was less than eleven years old, to wit: the penis of said Police Officer did contact the hands of said person known to this Department. *(As amended)*

N.Y.S. Penal Law Section 130.65(3) – SEXUAL ABUSE IN THE
FIRST DEGREE

10. Said Police Officer Hector Vargas, on or about and between October 11, 1987 and October 10, 1990, in Richmond County, did commit a course of sexual conduct against a child, in that said Police Officer did commit one or more acts of oral sexual conduct with a person known to this Department, who was less than eleven years old. *(As amended)*

N.Y.S. Penal Law Section 130.75(1)(a) – COURSE OF SEXUAL CONDUCT
AGAINST A CHILD IN THE FIRST
DEGREE

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N.Y.S. Penal Law Section 130.80(1)(a) – COURSE OF SEXUAL CONDUCT
AGAINST A CHILD IN THE SECOND
DEGREE

12. Said Police Officer Hector Vargas, on or about and between October 11, 1998 and October 10, 1999, in Richmond County, did, with the intent to harass, annoy, or alarm another person, threaten physical contact against a person known to this Department, in that said Police Officer did threaten to kill said person known to this Department. *((As amended))*

N.Y.S. Penal Law Section 240.26(1) – HARASSMENT IN THE
SECOND DEGREE

The Department was represented by Lisa McFadden, Esq., Department Advocate's Office, and the Respondent was represented by Michael Martinez, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Guilty of Specification No. 5. He is found Not Guilty of Specifications Nos. 1 through 4 and 6 through 12.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Lieutenant Kenneth Noonan and Don Lewittes as witnesses.

Lieutenant Kenneth Noonan

Noonan, a nine-and-a-half-year member of the Department currently assigned to the 68 Precinct, was assigned as a sergeant in the Internal Affairs Bureau (IAB) in May 2006. He testified that on May 10, 2006, IAB was notified that the Respondent's mother, [REDACTED], called a rape hotline and indicated that the Respondent had committed some sort of sexual abuse against his half-sister, [REDACTED]. Noonan was assigned to investigate the allegation. Noonan stated, upon review of the IAB Command Center Log for that day [Department Exhibit (DX) 1], that [REDACTED] told the rape hotline that [REDACTED] had not reported the abuse sooner because she ([REDACTED]) was afraid of the Respondent. That day, Noonan went to the [REDACTED] residence on [REDACTED] and spoke with [REDACTED]. [REDACTED] seemed distraught and cried at several points during the interview. [REDACTED] sat in on the interview to provide support for [REDACTED]. [REDACTED] at times interjected statements in Spanish during the interview. At one point a male was also present at the interview and asked what was going on. This male may have been [REDACTED], [REDACTED]'s father. It is not clear

whether he was present for the entire interview because several "Males" were being quoted throughout the questioning.

[DX 2 and 2A are the tape and transcript of the May 10, 2006 interview with ██████ In the interview, ██████ stated that she is 23 years old.² The Respondent is ██████'s son from a previous marriage, and ██████ always felt that the Respondent resented her. ██████ stated that when she was five or six years old, he would occasionally babysit her and do mean things to her, such as putting hot peppers in her mouth and putting her head in the toilet. According to ██████, he would also ask her to kiss him, masturbate him, and forced her to perform oral sex on him. This abuse occurred periodically, possibly once or twice a month. Although the last time she actually performed oral sex on him was when she was six or seven years old, the Respondent tried to get her to perform oral sex on him again when she was 16 or 17 years old (in the year 2000). That incident involved the Respondent grabbing her head and saying, "You look like you could give nice head. You have those nice Spanish lips." When she told him to stop, the Respondent said that he was just kidding around. During that same time period, the Respondent asked to take a photograph of her with her clothes off. The Respondent took the picture, but ██████ held onto it. She does not know where the picture is located.

██████ stated that the Respondent has touched her inappropriately numerous times in recent years. In July 2005, he grabbed her breasts. The last time the Respondent did anything to her was the previous Thanksgiving, when he went upstairs to her bedroom, grabbed her buttocks over her pants, and said, "How good, how delicious." According to ██████, the Respondent has threatened in the past to hurt her. Once when she was 16 years old, the Respondent told her that if she spoke about the abuse, nobody would

² The Respondent is 13 years older than ██████

believe her and he would kill her. According to [REDACTED] the Respondent has hit his wife many times, but she was scared to report it because she was also threatened by him.

[REDACTED] also mentioned an incident involving the Respondent's daughter, [REDACTED] telling a teacher that the Respondent touched her on the buttocks a lot.

For a long time she kept the abuse secret because she felt ashamed. Before she told her mother about the abuse, she told a friend from high school, [REDACTED]. What prompted her to finally tell her mother was when her mother expressed concern about her younger sister babysitting for strangers. [REDACTED] commented to [REDACTED] that a child can become the victim of abuse without even leaving home. [REDACTED] put the pieces together and confronted [REDACTED] about the abuse. At that point, [REDACTED] told [REDACTED] all about it. Although [REDACTED] tries to stay away from the Respondent, she has babysat his children. It should also be noted that [REDACTED] interrupted the interview with [REDACTED] and made several emotional statements concerning her ill feeling towards the Respondent. Also during that interview [REDACTED] and [REDACTED] made several references to the Respondent being a violent person and the fact that he had several guns and that they were afraid of him. [REDACTED] even brought up the subject of the lawsuit that involved the Respondent's house and [REDACTED] seem to suggest that he would resort to violence against the opposing party to resolve it.]

After the interview, Noonan spoke with [REDACTED]'s two sisters, [REDACTED] and [REDACTED]. Their conversation was not recorded. At the time, [REDACTED] was 19 and [REDACTED] was 13. [REDACTED] did not have anything to say about the allegations, but [REDACTED] told Noonan that she had seen the Respondent rub against [REDACTED] and whisper things in [REDACTED]'s ear that made [REDACTED] upset. These incidents usually occurred when the Respondent would drop off his daughter for babysitting.

[Court Exhibit 1 is the Department Advocate's Office Litigation Support Unit Investigating Officer's Report, indicating that on January 14, 2009 subpoenas were served on [REDACTED] and [REDACTED] by delivering the subpoenas through certified mail and affixing copies of the subpoenas to the door of their residence. On January 21, 2009, a search was conducted using several databases to locate [REDACTED]. Although the search had negative results, [REDACTED] was served with a subpoena that day by sending it certified mail and affixing a copy to the door at an address provided by the Assistant Department Advocate. None of these witnesses, however, appeared at trial.

DX 3 and 3A are the tape and transcript of a controlled telephone conversation between [REDACTED] and the Respondent on the same day as the interview:

Respondent: Your mom is accusing me that I raped you when you were a little kid.

Carrie: That you raped me?

R: Yeah, when you were a little kid. [REDACTED], you know, I mean, I was going through fucking hell yesterday. Your mother accused me of rape yesterday at the end of the day and accused me of molesting you. I don't know.

C: What do you mean you don't know?

R: I know what?

C: You know, you know everything.

R: I know what everything?

C: Everything you know. You know. I'm just tired. The other day I was just thinking. Our relationship, you were like my brother, and the way you are.

R: What's going on? What?

C: I just think we. Our relationship. I just got really upset.

R: Let me tell you something. We don't have a relationship because your mom never showed you guys that I'm the elder brother. Okay, I was always some sort of garbage or whatever, so I don't really have a relationship with you kids.

C: That's not true. How can you say that you don't have a relationship with us?

R: I don't have it, honey. I don't. You always looked at me. . . . I am like

the fucking garbage to the family. I am the black sheep.

C: Why do you think that? Why do you feel that way?

R: I don't know. I really do not know, and when we are all at the house on [REDACTED] Street I did everything for you guys. My mom, your father, and you guys to move in so you could have a fucking roof over your head.

C: Okay. That's fine. You know, but one hand washes another, and you don't forget over time that you've hurt me, you've said bad things to me.

R: Like what?

C: Like what?

R: Fucking with you kids growing up, like what?

C: What do you mean, like kids growing up? You and me recently, you always have a comment. You're always, you know, grabbing this, doing that.

R: Grab what? Growing up? Like what, [REDACTED]

C: Like what? Like the way you are with me, the way you talk to me, the way, you know, like when I come next to you, you have to grab my tits.

R: When did I grab you, [REDACTED]?

C: When? The time you grabbed my ass at Thanksgiving.

R: What? What Thanksgiving?

C: The one that just passed. I didn't want to come downstairs and you came up to the room. You forgot?

R: I grabbed your chest?

C: No, my ass.

R: Your ass?

C: Yes.

R: No, I slapped your ass. What's the big deal with that? I always do that?

C: You always do that. I understand, but why?

R: I always do that. I always did that.

C: I know you always did that, but why would you do that?

R: What's wrong with that? I'm just acting, you know, like one of the boys.

C: Come on. That's more than just one of the boys.

R: You've got to be fucking kidding me. Listen. First of all, mom accused me, that I raped you when you were a little kid. Mom said I fucking molested you when you were a little kid.

C: You never raped me. I know that.

R: Then what is this shit that my mother is saying then?

....

C: I don't understand. Why did you do things to me? Why were you mean to me? Why did you make me give you a blow job?

R: What?

C: Come on, Hector.

R: A blow job, [REDACTED]

C: I just need to move on with my life. You don't understand. I can't have a relationship. I can't be myself. . . . You have to be honest. Why did

you do these things? Why?

R: What things?

C: Like when you used to kiss me and you used to make me touch you.

R: When was this?

C: When I was a little girl and you used to come over.

R: How old were you then? You remember how old you were then?

C: When I was a little girl.

R: How old were you then?

C: You should know.

R: How old? How old?

C: You tell me. How old was I? Obviously, I couldn't be alone in the house.

R: Listen to me. Listen to me. [REDACTED] I (inaudible). When was I alone with you that much? And if it bothered you so much, how come you didn't say anything to mama. . . .

C: Because I was a little girl.

R: Why 20 years later?

C: Because I was a little girl.

R: When did I abuse you, you fucking. . . . Listen, if this shit happened (inaudible).

C: Come on, Hector.

R: Why didn't you bring it up fucking six years ago?

C: You don't remember when you used to cover my mouth and tell me you better not tell anyone? Why? Why would you say that?

....
R: Listen. If you think I did this shit when you were a little kid, then call the fucking police or whatever and accuse me of doing stuff like that. First of all, if you think I did that, it's in your goddamn fucking imagination. But my thing about it is, how come you never fucking brought it fucking ten years ago, five years ago, or you approached me directly.

....
C: Listen to me. Can you just please promise me you won't touch me anymore and you won't make stupid comments anymore, that you won't grab my ass, that you won't grab my tits, you won't tell me how good I look, you won't tell me what great lips.

R: When did I grab your tits? [REDACTED] when did I grab your tits? Don't be an idiot.

C: I'm not being an idiot.

R: When did I grab your tits? I even took you to get a tattoo.

C: This is after. This is recent. I'm seeing you and that's all you do.

R: When's the last time you saw me? The last time I saw you was at the party with [REDACTED] Did I touch your tits then?

C: And in the summer when you would drop off [REDACTED] once in a while. You wouldn't come by and make a stupid comment and grab something? You're telling me when you see me you don't hug me, you don't grab me,

you don't do it in a gross manner?

R: [REDACTED] you're telling me now I just recently grabbed your tits. You've got to be fucking nuts. I grab your tits? [REDACTED] seriously. Are you telling me with your cocky attitude, you're telling me you were going to let me touch you like that and you weren't going to say anything?

C: What do I tell you? Stop joking around like that and fuck off. Do I not say that? You've done stupid things in front of [REDACTED] and [REDACTED] said to you don't do that to your sister. You don't say things like that to your sister.

R: Listen. I admit I'm guilty of making stupid comments. I do it to everybody (inaudible). I don't want to associate with none of you guys.

C: I know you don't, but you come over you act like you're very friendly, too friendly.

R: I act very friendly with you.

C: Listen. I just want us to be honest with each other. I need you to be honest. I need to move on, okay. I need to live my life, okay.

R: [REDACTED] when have I not let you live before? Why, if I was fucking molesting you when I was fifteen or sixteen years old and you were three or four years old, how come you didn't bring it up then? How come you didn't do anything then? Do you understand?

C: Why? Because you were holding my mouth shut and telling me you're going to kill me.

R: Oh, Jesus Christ. I left the house, and I was going to fucking kill you? You've got to be fucking kidding me.

C: Oh, come on. You know how you are. You ran around the house with the gun in your mouth saying you were going to kill yourself.

R: When was this?

C: When you had a fight with [REDACTED]

R: I never put a gun into my mouth, and you know that.

....

R: You accused me of a crime, [REDACTED]

C: No, I am not accusing you of a crime.

R: Your mom said that I fucking raped you or that I fucking molested you. That's a fucking crime, [REDACTED] And trust me. I hate bullies.

C: You hate bullies? Did you not forget what you used to make me do to you? You don't forget being in that bathtub, you pulled down your pants, and you made me.

R: You don't even know what you hell (inaudible). . . you were so.

C: I was so what?

R: Whatever.

C: No, tell me.

R: I really don't know what's going on with you.

C: What's going on to me? I've been keeping this for so long that I want to kill myself.

R: Oh my God. You are such a strong person, and you're telling me now you're flipping out. Now?

C: A strong person has their fucking breaking point.

R: What breaking point? What is this? All this shit that you fucking went through, and you're telling me now?

C: What does it matter, now or five years ago or ten years ago? What does it matter? It happened. I just want to fix it.

R: You've got to be kidding me. I don't even associate with you people.

C: It's not you associating with me. It's about us. The way you are, the things you say, you grabbing me, jumping on my bed, being vulgar, everything.

....

R: You're accusing me of a fucking crime.

C: I'm not accusing you. Why? I'm asking you.

R: You've got to be fucking kidding me.

C: Why? Why?

R: You've got to be fucking kidding me. You're telling me that I touched you.

....

R: Stuff that happened years ago and now you're telling me now that I touched your tits, that I touched you. The comments, yeah. I always made fucking comments. But you're telling me now that at last fucking Thanksgiving I touched your tits.

C: No, I said you grabbed my ass.

R: Wait. We went to the beach with [REDACTED] and everybody, and I took pictures, and I went with you to get a tattoo on your back. How come you didn't have a fucking flashback?

C: I've been keeping it bottled up for so long I can't take it.

R: What the fuck did you tell my mom anyway? That fucking loser, that fucking snake (inaudible) I cannot stand that woman (inaudible). [REDACTED] how come you didn't call me from your cell phone? How come you're calling me from my mom's house?

C: Why?

R: Yeah, why? You want to put me on speaker in front of everybody?

C: I'm not calling you on speaker.

R: If you want to speak to (inaudible) when somebody needs you (inaudible). If you're accusing me of something then fucking call the police and get that done.

C: I don't want to do that.

R: That I fucking touched you, you've got to be fucking kidding me.

....

R: How old are you, [REDACTED]? I moved out of the fucking house, out of your goddamn fucking family's at the age of eighteen. I walked out at eighteen. I had my first girlfriend at age seventeen and a half, which is [REDACTED] I was with [REDACTED] day and night, and I worked like a fucking horse. Tell me when did I have time to do all this shit you?

C: You're telling me you never did these things? You never did these things? Why are you being so defensive?

R: Listen to me.

C: Listen to me.

R: I smacked you when you acted like an asshole. You used to come into the fucking bathroom to annoy me. I told you to get the fuck out and when you did not fucking listen- you and [REDACTED] I used to stick your head in the toilet and flush the toilet. I hated to do that.

C: You forget when you made out with me?

R: Are you fucking nuts?

C: No, are you? You blocked it out of your mind so badly that you have no recollection?

R: Why would I block this out of my mind?

C: Come on. Give me a break.

R: Let me ask you something. You're telling me that you performed fellatio on me?

C: Yes.

R: Well, at what age did I do this? You don't even remember what age.

C: I do remember. I'm not making this up.

R: How old were you, [REDACTED]? How old were you, [REDACTED]? Do you fucking know? You're telling me you didn't confuse me?

C: I didn't confuse you.

R: Let me ask you something. Who else lived in that house at that time, too? Somebody else lived in the house just for a little while. Who else lived there?

C: My uncle.

R: Your uncle. Now you're telling me. Let me tell you, you better make sure you don't confuse me with your uncle.

C: I'm not. I'm not an asshole. You're telling me you never did these things to me? You never made me do these things? Come on. Please be honest.

R: Listen. Move on with your life, [REDACTED]

....

R: You're telling me that I did all this shit to you. You're fucking destroying me, okay.

C: You destroyed me. You have not destroyed me over the years?

R: Listen, was I sarcastic? Was I rude? Yeah, I was. Did I maybe touch your ass once in a while, in a smack? I do it to everybody. Yeah, but you're telling me that I did all this shit to you, you've got to be fucking nuts.

C: You're fucking nuts. I need to move on with my life and I can't if you're not honest with me. Why aren't you being honest with me? Why? Why would you do this to me? I'm your sister.

....

R: Let me talk, honey. Listen to me. I do not know what happened fucking sixteen or twenty years ago.

C: You do know. Why can't you just say it and let me be at peace?

R: Be peaceful. Have your peace.

C: I can't have it.

R: Listen. If somehow you think I did all this shit in your brain, then go ahead.

C: No. You didn't do all this shit in my brain. I can't be like this, okay.

What if what you did to me you might be doing to [REDACTED]?

R: Are you accusing me of doing something?

C: No, I'm not, but I'm saying.

R: You've got to be fucking nuts. [REDACTED] tell me something. If I'm such a fucking child molester (inaudible), why don't you ask [REDACTED] Me and [REDACTED] were the closest. Me and [REDACTED] were always the closest in the house.

C: Why did once [REDACTED]'s teacher tell [REDACTED] that your daughter keeps saying that her father keeps touching her on the ass? Why?

R: Because I always smack people's ass. I always did that. I used to bite my daughter's ass. Do you understand that? I always did that. I always have done that.

....

R: The reason why I do not like my mom is because she was a very nasty (inaudible). When I used to go to Ecuador she used to beat the fucking crap out of me. You think I'm going to forget about that? No. My mom brings me over here and makes me a fucking goddamn slave- clean the dishes, do the goddamn laundry, and taking care of fucking kids.

C: Is that why? Is that why you made me blow you? Is that why? Just say yes or no. Is that why?

R: No, I didn't.

C: Why, Hector, why?

R: Are you sure of that?

C: Yes, I am, and you know.

R: Alright, then I know.

C: You do know.

R: You're accusing me of fucking rape.

C: I never said you raped me. You never did. I never said that and you never did.

R: Listen to me, [REDACTED] Listen to me, [REDACTED] You have never talked like this before. I don't even recognize the way you're talking. You were always a strong person. You did this, you did that. Now I don't get this. If this has been going on for a long time, how come you didn't break this out before?

....

C: All the psychiatrists and all the psychologists that you have been to, how come you never mentioned it to anyone?

R: Mentioned what? Because I never did anything, honey. Why would I mention it to a goddamn psychiatrist that I abused my sister? Are you nuts?

....

R: What I don't understand is that I haven't done anything wrongful with you.

C: So, why when you see me you always have to make a vulgar comment?

Why do you have to be a dick? Why?

R: Every time I see you I make a vulgar comment?

C: You do not?

R: Every time I see you? Every time I see you I make a vulgar comment?

C: The only time you acted respectable was that last time when [REDACTED] was going to Florida and you wanted to make that dinner for her. That was the last

time.

R: With your goddamned fucking boyfriend? Fuck that.

C: How about Thanksgiving when you were jumping on my bed, humping my bed. What about that?

R: Humping the bed? I wasn't humping you.

C: You weren't humping me, but you were humping the bed and you were making all these comments.

R: I don't even know- humping the bed or whatever. You're kidding me.

C: Come on, you always do. And why do you have to smack asses? Why do you have to grab asses? Why do you have to do anything?

R: Well, granted.

C: But why? But why?

R: Listen, I don't even.

C: Why? Why? Why?

R: Smacking your ass and stuff like that?

C: Why did you just grab my ass at Thanksgiving. Why?

R: Get this correct. Now was it tits or the ass? Which of the two was it I touched? Decide where it is, because pretty soon they're going to fucking say you were blowing me at Thanksgiving.

C: No, nobody said that. Okay? You grabbed my ass at Thanksgiving.

R: Look at this, [REDACTED] Okay. If you think I did something wrong, okay, if you think I did this holy shit, alright, I am very sorry that you fucking have these ideas in your head.

C: I don't have ideas. You get it straight. I don't have ideas. Is it my idea that you make vulgar comments to me? That you say certain things to me?

R: I always make vulgar comments. Please. You know that I make rude comments. Everybody knows I make rude comments.

....

R: If I did all this and you're telling me now, you're telling me that I did all this shit to you, why didn't you bring this up? And if you're telling me you couldn't live your life and you're telling me this has been bothering you for so long, it's been eating inside of you.

C: It has.

R: How come you didn't approach?

C: It doesn't matter. Do you know how hard this was for me?

R: But why are you doing it now?

C: Because I can't take it anymore.

R: It's because of your mom. That fucking snake. A fucking snake. It's fucking insulting. I'm telling you, I'm getting fucking annoyed with this shit.

C: You're fucking annoyed? How do you think I feel when I had to blow you?

R: What?

C: Or when you grab my ass or when you make comments, how do you think I feel?

R: Why didn't you tell me earlier to stop or whatever?

C: I do.

R: Stop. When did you?

C: I do tell you stop. You don't do that.

R: Listen to me.

C: Even [REDACTED] told you. Even [REDACTED] has told you stop, and the way you speak to me and the way you grab me.

R: When did I grab you?

C: In front of your wife. She has told you stop and you are being disrespectful, the same way you beat the shit out of [REDACTED]. You have no respect.

R: I beat the shit out of [REDACTED]? Whatever happens between me and my wife, don't bring it in here.

....

C: I want to fix this. I want to move on with our life. I can't move on with my life.

R: (Inaudible) you tell me now. What the fuck?

C: That's why I'm telling you now, because I don't want to die with this on my chest.

R: Now you're telling me. You're telling me that I slept with you years ago, and now you're telling me you're going to be sorry now. You're telling me that I've always been touching your ass and your tits and shit like that and being rude. Yeah, I'm always fucking rude. I'm doing that all the time. Shit. But you're telling me that last year I touched your fucking tits or your ass. You got to be smoking.

C: Come on.

R: Holy fucking crackers. If I was so abusive with you, how come I haven't been abusive with [REDACTED] with anybody else? You've got to be smoking fucking (inaudible). You've got to listen to me.

C: No, you listen to me. I'm not saying that. I'm just saying you did what you did when I was little and you know you did.

....

R: Now you're telling me. Now you're telling me. Right now it's bothering the crap out of me. Did I touch your goddamned tits or your ass last fucking Thanksgiving?

C: I didn't say you touched my tits last Thanksgiving. I said you touched my ass. You grabbed my ass.

R: Oh my God.

C: Okay?

R: Oh my God.

C: It's just the way you are. You know what it is? I just don't like the way you hug me sometimes and you try to, like, you're always rubbing up on me. That's what you do. That's how you are. Fine.

R: Rubbing on you?

C: Yeah, the way you go, or you just grab me real tight or whatever. You know. Come on.

After his supervisor was notified about the facts of the case, the Respondent was placed on modified duty status. The decision to modify the Respondent was based on the nature of the allegations and the fact that [REDACTED] and the rest of the family expressed fear of the Respondent. Noonan went to the 70 Precinct to retrieve the Respondent's firearms. Four guns were collected from the Respondent's command and two more were collected at the Respondent's home. One of the guns taken from the Respondent's locker at his command was a semi-automatic rifle made by DPMS Inc., model A-15, serial number 25122. This gun was sent to the Firearms Analysis Section to determine the legality of its possession. The resulting Firearms Examination Notes and Report [DX 4] indicate that the gun is an assault weapon under the New York City Administrative Code. Noonan explained that it was, therefore, illegal for the Respondent to possess it within New York City.

Noonan was present at an interview that the Assistant District Attorney conducted with [REDACTED] [DX 5 and 5A are the interview tape and transcript. In the interview, [REDACTED] stated that on the previous Thanksgiving the Respondent came upstairs to her bedroom, slapped her buttocks, and said, "Que rica, how good, how delicious." [REDACTED] stated that this type of conduct was a "normal everyday thing" for the Respondent. She babysat the Respondent's daughter once or twice a week. According to [REDACTED] the Respondent's ex-wife, Karola³, once told her about the daughter making a comment to her teacher about the Respondent touching her buttocks. [REDACTED] stated that she was afraid of the Respondent.] The Respondent was subsequently arrested for sexual abuse and forcible touching, but the District Attorney's Office determined that the Respondent could not be charged for older incidents of abuse because they were outside the statute of limitations.

³ Although the Respondent's ex-wife is sometimes referred to as Karole, she identifies herself as Karola.

On May 12, 2006, Noonan prepared two Domestic Incident Reports (DIRs) based on [REDACTED]'s allegations. On the DIR for a July 15, 2005 incident [DX 6], [REDACTED] wrote in the narrative section that when the Respondent came to her house to drop off his daughter, he grabbed her breast and said, "Those must be heavy." On the DIR for the November 24, 2005 incident [DX 7], [REDACTED] wrote that the Respondent made sexual comments in her bedroom, grabbed her buttocks, and said, "Que rica." [REDACTED] signed both reports next to the warning that the making of false statements was punishable as a class A misdemeanor. On the same day that Noonan prepared the DIRs, [REDACTED] was deposed in Richmond County Criminal Court about the same incidents. The deposition [DX 8], which was signed by [REDACTED] contained the same warning about false statements.

On May 16, 2006, [REDACTED] was issued an Order of Protection [DX 9] against the Respondent. Noonan testified that although [REDACTED] requested the order, there was no indication that the Respondent threatened [REDACTED] prior to the order being issued.

On April 21, 2008, Noonan conducted follow-up interviews with [REDACTED] and [REDACTED] [DX 10 and 10A are the interview tape and transcript. In the interview, [REDACTED] reiterated that she had observed the Respondent brush up against [REDACTED] and whisper things in her ear. Sometimes [REDACTED] would get mad in response, curse at the Respondent, and walk away. The Respondent would laugh like he thought it was a joke. [REDACTED] told [REDACTED] that she hated the Respondent and did not want her to sleep over at the Respondent's house.]

As part of his investigation, Noonan also conducted a telephone interview of [REDACTED] [DX 11 and 11A are the interview tape and transcript. In the interview, [REDACTED] stated that she went to high school with [REDACTED] and they are best friends.

Approximately a year earlier, [REDACTED] told [REDACTED] that the Respondent touched her when she was little and that she was afraid of him. [REDACTED] was hysterical crying as she talked about it. [REDACTED] also told [REDACTED] that the Respondent told her not to tell anybody about the touching, but she ([REDACTED] stood up to him once when she was 16 years old. According to [REDACTED] the Respondent has hit on her a lot of times and is always making fresh remarks, but she always thought that he was just joking around. [REDACTED] did not tell [REDACTED] anything about the Respondent touching her recently. [REDACTED] stated that had the Respondent touched [REDACTED] recently, she would expect [REDACTED] to tell her about it. [REDACTED] has not seen the Respondent recently, and she has never personally seen him touch [REDACTED] inappropriately.]

The Respondent's criminal case resulted in the Respondent pleading guilty to disorderly conduct. The disposition included a conditional discharge and the issuance of a year-long Order of Protection. [DX 12 is the Certificate of Disposition, dated February 15, 2007.] Noonan testified that [REDACTED] cooperated with the District Attorney's Office on the case, and she expressed to Noonan that she would have been willing to testify in criminal court.

On cross-examination, Noonan testified that a police officer can buy a firearm without a permit, and a person who lives outside of New York City can lawfully purchase a Model A-15 rifle. The Respondent would, therefore, not have been charged with misconduct had the rifle been stored in Westchester or Long Island. Noonan could not tell by just looking at the gun whether or not it was lawful for the Respondent to have it in his locker. Instead, the gun needed to undergo laboratory analysis, and Noonan needed to look through statutes and administrative codes. The Brooklyn District Attorney's

Office determined that the Respondent should not be charged criminally for his possession of the rifle. The rifle was not loaded. In an interview, the Respondent told Noonan that he did not know that it was unlawful for him to possess it.

Noonan testified that he handles rape cases differently from other kinds of cases. Because [REDACTED] was an alleged sex abuse victim, he treated her with "kid gloves" during their interview. He did not think it was appropriate to conduct a rigorous cross-examination of her. Although he was trained to interview witnesses separately to see if their stories are consistent, [REDACTED] was present during [REDACTED]'s interview. [REDACTED] conveyed to Noonan that she had no idea of the abuse that took place until [REDACTED] told her about it. During the interview, [REDACTED] made comments about a lawsuit and lead paint, but Noonan did not think these comments were relevant to [REDACTED]'s allegations. Prior to May 2006, no member of the [REDACTED] family ever made an allegation of abuse against the Respondent or reported to the Department that they were afraid of the Respondent. What [REDACTED] told the Assistant District Attorney was consistent with what she told Noonan. Like Noonan, the Assistant District Attorney who interviewed [REDACTED] did not cross-examine her.

Before Noonan arrived at the [REDACTED] residence for the initial interview, [REDACTED] had already called the Respondent and accused him of abusing [REDACTED]. The controlled telephone call on the day of the interview captured the Respondent and [REDACTED] having a lengthy conversation. At no point during the conversation did the Respondent admit to abuse.

Noonan testified that he closed as unsubstantiated the allegations involving the abuse that [REDACTED] suffered between the ages of five and seven. He explained that "unsubstantiated" means that there was not enough information to either prove or

disprove the allegations. He further explained that his supervisors at IAB took the stance that the allegations should be unsubstantiated since the alleged misconduct took place before the Respondent was a member of the Department. When the case was forwarded from IAB to the Department Advocate's Office, the specifications covering the period between 1987 and 1990 were not part of the case.

During the investigation, [REDACTED] repeatedly claimed that she was told by Karola that [REDACTED] spoke to a teacher about the Respondent frequently touching her [REDACTED]'s) buttocks. Even though Karola and [REDACTED] were living in Florida at the time, Noonan took it upon himself to investigate [REDACTED]'s claim. He interviewed Karola a couple of times on the telephone, and she told him that the Respondent has never done anything inappropriate to [REDACTED]. Noonan also contacted Florida's Administration for Children's Services and visited [REDACTED]'s school. Noonan testified that he was unable to find any evidence whatsoever that [REDACTED]'s claim concerning [REDACTED] was true.

None of [REDACTED]'s allegations concerning recent years involved the Respondent going underneath her clothes. When she claimed that the Respondent grabbed her buttocks or breast above her clothes, [REDACTED] told him to get away and then walked away. She did not call the police. Noonan did not find anybody to corroborate [REDACTED]'s allegations of abuse taking place on July 15 and November 24, 2005.

On redirect examination, Noonan testified that [REDACTED] never alleged that she personally observed the Respondent sexually assault [REDACTED]. All [REDACTED] said was that she heard that the Respondent touched [REDACTED]'s buttocks a lot. Both the Respondent and Karola told Noonan that he (the Respondent) did playfully bite [REDACTED]'s buttocks at times.

Noonan explained that it is ultimately his supervisors who determine whether or not an allegation should be substantiated. In this case, his supervisors concluded that the allegations involving the childhood abuse should be unsubstantiated because the criminality was outside of the statute of limitations and was pre-employment misconduct. This conclusion was not based on a credibility determination of [REDACTED]

[REDACTED] was not present during Noonan's interview with [REDACTED]. It was when Noonan asked [REDACTED] if she had ever seen the Respondent do anything inappropriate that [REDACTED] told him about the Respondent rubbing against [REDACTED].

Don Lewittes

Lewittes has an independent practice in clinical and forensic psychology. He is also employed in New York City through the Agency for Children's Services as an expert in the field of child sex abuse. He received his Ph.D. in Clinical Psychology from the State University of New York at Albany. In addition, he received an internship that was approved by the American Psychological Association at Rutgers Medical School. During that period, he began a specialization in child and adolescent sex abuse. He then went on to train in child sex abuse and interviewing techniques with the New York State Department of Justice. He has practiced psychology since 1978. During that period, he has worked on over 500 cases involving allegations of sexual assault. He was a chief psychologist at South Nassau Communities Hospital, where he personally evaluated children and adults and supervised a team of other professionals in cases involving sexual abuse and assault. He was also an affiliate clinical professor at St. John's University. He has been published in peer review journals approximately five times. One of these

articles was about child and adolescent sex abuse in a family setting. He has presented at conferences over 100 times in the area of forensic and clinical psychology, and he has testified as an expert over 100 times in various courts throughout New York State. Among other fields, he has provided expert testimony in the area of child sex abuse and child sex abuse syndrome.

On *voir dire*, Lewittes stated that he has testified over 100 times as an expert in child sex abuse cases. The majority of those cases dealt with a delay in reporting. Although he testified for the prosecution in the vast majority of those cases, he has testified a number of times on behalf of the accused. He has testified in this forum three or four times. Based on the foregoing, Lewittes was deemed an expert in clinical and forensic psychology and sex abuse.

On continued direct examination, Lewittes explained that "intrafamilial family child sex abuse syndrome" ("the Syndrome") is a pattern of behavior exhibited by children and adolescents who have suffered sex abuse within a family context. Over 25 years of clinical evaluations and research studies have gone into formulating the Syndrome, which is generally accepted to be credible in the psychiatric and legal communities. Lewittes testified that every individual is different, though, and reactions to abuse vary. He has not reviewed any of the case materials pertaining to [REDACTED]'s allegations against the Respondent. Nor has he interviewed [REDACTED] or any of the other parties involved in the case.

Lewittes testified that the Syndrome consists of five stages. He described the first stage or "engagement stage" as the period during which a child is engaged in believing that an authority figure is to be trusted and accepts being with them, but a specific change

occurs “from a protective or family relationship to one where the adult utilizes the child as an object of their sexual gratification.” Typically the victim is a younger female and the abuser is an older male, who has both psychological and physical resources and power to force a child to engage in sexual acts. The second stage is the “sexual interaction stage,” which often progresses as the perpetrator becomes bolder and finds that the victim is submissive and has not told anybody. This phase places the child in a tremendous psychological conflict. Typical reactions are that of shame, confusion, and fear, as the child develops a psychological persona where they often go into a shell. This is called the “secrecy stage,” during which the child feels that she must keep the abuse a secret because of shame and because of fear of retribution or consequences. Secrecy is an extremely powerful dynamic that children often have tremendous difficulty in overcoming and sometimes never move beyond. In some cases, the secret comes out only because either somebody else stumbles onto it, or there is some other emotional reason that after a period of time the child is unable to hold onto or integrate the experience. This leads to the “disclosure stage,” which is typically delayed and does not occur sometimes until years later. A disclosure can be either emotional or strategic. While emotional disclosure means that the victim tells somebody she trusts just because she needs to get it off her chest (and not because she expects help or anything to happen), strategic disclosure means that the victim tells somebody with the expectation that there will be consequences. The stage after disclosure is called “repression,” during which the original feelings well up inside of the victim, the victim experiences flashbacks and memories, and she does not feel comfortable talking about the abuse again.

Lewittes testified that if the victim has not disclosed the abuse, she is in many

cases forced to continue the familial relationship with her abuser. An abuser can even maintain a positive relationship with the victim outside the arena of sexuality. At times, the abuser goes overboard and becomes especially nice to the victim in an attempt to assuage his guilt, or he may attempt to bribe the victim's secrecy with presents. Lewittes stated that because children are often very intimidated by threats, an abuser's threat can create "tremendous degrees of silence that are almost unbudgeable." The threat to harm a loved one can be extremely compelling to a young child, and the degree of fear tends to be greater when the child knows that the abuser has access to weapons. An abuser's sexual jokes or comments could keep a victim fearful even after the physical abuse has ceased. Seeing another younger member of the family in a threatening situation may prompt a victim to finally disclose the abuse she has suffered. The victim may, nevertheless, be unwilling to cooperate with law enforcement, which does not have a reputation of always being private or protective. Testifying against an abuser would be dramatic for a victim since it usually requires a face-to-face confrontation with the abuser and may also induce a trauma reaction that the victim is frightened of re-experiencing.

When asked about false allegations, Lewittes explained, "In general, for adults, the studies seem to show that it is very difficult for a woman to utilize sex abuse as a vehicle for some motive of revenge because it involves talking about parts of her own body, bringing herself into an area of anxiety and humiliation." He continued, "Studies tend to show that false allegations of sex abuse usually are involved in very specific relationships, such as where a woman has been having an affair with a man and has felt rejected . . . or where there is a specific lack of moral development in this woman where she is known to be a pathological liar." According to Lewittes, it would be extremely

unusual for a party to make a false allegation regarding something that happened 20 years in the past. Similarly, it would be highly unusual for a party to make a false allegation that mirrors a prior emotional disclosure.

On cross-examination, Lewittes testified that it is hard to predict how a victim of sexual abuse will deal with her trauma. He explained that when he said earlier that it would be unusual for a party to make a false allegation regarding something that happened 20 years in the past, he was assuming that the alleged victim was thinking rationally. He stated that it is possible for somebody to be pressured by her parents into making a false allegation. It is also possible that somebody who makes an allegation of abuse and then is reluctant to testify is reluctant because the allegation is not true. Lewittes reiterated that he did not interview anybody involved in this case, and he stated that his role is not to say whether or not the abuse against Carrie actually occurred.

The Respondent's Case

The Respondent called Karola Vargas and Police Administrative Aide Barbara Figueroa as witnesses and testified in his own behalf.

Karola Vargas

Karola currently resided in Miami, Florida. She and the Respondent married in 1994, and they have a 13-year-old daughter, [REDACTED]. When they first got married, they lived on [REDACTED] in [REDACTED] in a basement apartment that was approximately 500 square feet. When [REDACTED] was two or three months old, the Respondent's mother, step-father, and three sisters moved into the apartment. At the time, [REDACTED] was approximately

12 years old, [REDACTED] was eight, and [REDACTED] was two. They all lived together in the apartment for six to nine months. At that point, the Respondent bought a three-family house. The Respondent, Karola, and [REDACTED] moved into the first floor of the house, and the rest of the Respondent's family moved into the second floor. Karola testified that she was very close with [REDACTED] and used to see her everyday. [REDACTED] used to confide in Karola and tell her about problems she was having. After living in that house together for approximately six years, the Respondent's family moved to Staten Island, but Karola continued to see them at least twice a week. Even after Karola and the Respondent separated, she maintained a good friendship with his family, spent all holidays with them, and socialized with them regularly. She continued to socialize with the family until she moved to Florida three years ago. Karola testified that [REDACTED] never said anything to her about the Respondent abusing her or acting inappropriately. According to Karola, she never noticed anything out of the ordinary about the Respondent's relationship with [REDACTED], and they seemed to have a normal brother-sister relationship. Karola stated that she never saw [REDACTED] hesitate to go near the Respondent. Nor did she see [REDACTED] act differently when the Respondent was present.

Karola testified that she has never told anybody that she thought the Respondent acted inappropriately with [REDACTED]. While the Respondent touches [REDACTED] in a playful way, she has never seen him touch [REDACTED] or any other child inappropriately. Nobody at [REDACTED]'s school has ever brought an allegation against the Respondent, and Karola has never needed to go to [REDACTED]'s school because a teacher believed there might be something inappropriate going on between the Respondent and [REDACTED].

On cross-examination, Karola testified that [REDACTED] never babysat [REDACTED]. The

Respondent and [REDACTED] spent a decent amount of time together. Although Karola could not recall the Respondent and [REDACTED] spending any time alone together, it could have happened. There was no way for Karola to know what the Respondent and [REDACTED] were doing if they were alone together. It would have made Karola uncomfortable had [REDACTED] made allegations to her about the Respondent doing something inappropriate. Karola currently receives child support and alimony from the Respondent, and Karola and [REDACTED] are on the Respondent's medical plan. The Respondent has never threatened Karola, and Karola has never feared him. She does not recall ever observing the Respondent slap [REDACTED] on the buttocks, or hearing the Respondent make rude or sexual comments to [REDACTED].

Police Administrative Aide Barbara Figueroa

Figueroa is currently assigned to the 122 Precinct. She is a family friend of the Respondent, and they have known each other since she was eight years old. She explained that her parents and the Respondent's parents have always known each other, the Respondent is like a brother to her, and they refer to each other as cousins. When she was eight or nine years old, the Respondent was a teenager. During that period, they saw each other everyday. Figueroa is a few years older than [REDACTED], and she has known [REDACTED] since [REDACTED] was five or six years old. They used to play together as children and until three years ago continued to see each other ten to 12 times a year at family dinners and holidays. Most of the time the Respondent was also present at these family gatherings. Figueroa testified that she has never seen the Respondent kiss [REDACTED] grab or touch her inappropriately, or make lewd comments to her. [REDACTED] never conveyed to Figueroa in

any way that she was afraid of the Respondent or did not want to spend time with him. Nobody in the Respondent's family ever expressed fear of the Respondent.

On cross-examination, Figueroa testified that she is closer friends now with the Respondent than she is with [REDACTED], but until three years ago she and [REDACTED] were like family. [REDACTED] used to discuss a lot of personal issues with Figueroa. There was no way for Figueroa to know what the Respondent and [REDACTED] were doing when she was not with them. Figueroa never saw the Respondent slap [REDACTED]'s buttocks or anybody else's buttocks.

Respondent Police Officer Hector Vargas

The Respondent, a 16-and-a-half-year member of the Department, is currently assigned to the 70 Precinct. He is on modified duty as a result of the current case. He testified that his parents divorced when he was three years old and he was raised by his grandmother in Ecuador. In 1985, when he was 16 years old, he moved into his mother's Brooklyn apartment. By that time, [REDACTED] had married [REDACTED] and [REDACTED] was one year old. [REDACTED] and [REDACTED] were born in the following years, and there were plenty of times that the Respondent found himself alone with his three half-sisters. Both [REDACTED] and her husband worked, and the Respondent was responsible for a lot of household chores, including babysitting sometimes. The Respondent stated that his relationship with [REDACTED] was not good, and he used to "get smacked around a lot." He moved out of the apartment in 1987 when he turned 18, but he visited the [REDACTED] family occasionally. The Respondent became a truck driver and an auxiliary police officer, went to night school to get a high school diploma, and became a United States citizen. In 1992, he became a

police officer. The following year the [REDACTED] family moved to Ecuador, and the year after that the Respondent married Karola. In 1996, while [REDACTED] was a baby, the [REDACTED] returned from Ecuador. For a few months, the entire [REDACTED] family lived in the Respondent's small apartment with the Respondent, Karola, and [REDACTED]. Because the [REDACTED] did not have enough money to move out on their own, the Respondent bought a three-family house on [REDACTED] in [REDACTED] where they could all live together. [REDACTED] gave the Respondent a loan in the amount of \$5,000 to help with the down payment for the house. The Respondent, Karola, and [REDACTED] lived on the first floor of the house, the [REDACTED] lived on the second floor, and a tenant rented out the third floor. When winter came, the [REDACTED] could not pay for their share of the utilities, and the Respondent found himself with financial hardship. When the Respondent refinanced the house, [REDACTED] told him that he would not pay rent until the Respondent repaid the \$5,000 loan. For a year and a half the [REDACTED] did not pay any rent. Then, the [REDACTED] moved to Staten Island. The Respondent continued to live in the house until he and Karola separated in 2000.

The Respondent testified that Karola had a good relationship with the [REDACTED] and spent a lot of time with his three half-sisters. He stated that he had a good relationship with [REDACTED], and he would often take [REDACTED] and his other sisters with him to social events. [Respondent's Exhibit (RX) A is a photograph taken by the Respondent of Karola, [REDACTED] and [REDACTED] taken on the day of [REDACTED]'s high school prom. RX B is a photograph of Karola, [REDACTED] and the Respondent, taken at a Department party in 1996. RX C through G are photographs of [REDACTED] as a child, taken at a Department family day. RX C shows [REDACTED] sitting in a Department vehicle, RX D shows [REDACTED] getting into the car, RX E shows [REDACTED] with [REDACTED] in front of a truck, RX F shows [REDACTED]

getting into the truck, and RX G shows them in front of a bus. RX H and I are photographs of the [REDACTED] family, taken in front of Christmas decorations in December 1996. The Respondent, Karola, [REDACTED] appear in RX H. In RX I, Karola is replaced by [REDACTED] RX J is a copy of a photograph of the Respondent, [REDACTED] and [REDACTED]'s boyfriend, taken at Karola's house on Christmas 2003.]

The Respondent testified that he has never sexually abused [REDACTED]. He never touched [REDACTED] or forced her to touch him inappropriately while she was a child. According to the Respondent, he did not grab [REDACTED]'s breasts on July 15, 2005 or grab her in a sexual way on November 25, 2005. He has never grabbed [REDACTED] in a sexually suggestive way or gotten sexual gratification from squeezing her buttocks. Before this case arose, [REDACTED] had never accused the Respondent of abusing her or doing anything inappropriate. He testified that his relationship with [REDACTED] was good, and he even listed her as a beneficiary on his life insurance policy. When they hugged each other in greeting, [REDACTED] never told the Respondent to get away. [REDACTED] never indicated to him that she did not want to see him, and nobody in the [REDACTED] family ever expressed that they were afraid of him. The Respondent has never done or been accused of doing anything inappropriate to [REDACTED].

The Respondent testified that on May 4, 2006, he was served with court documents because a tenant in the three-family house that he owns was suing him for lead poisoning. The tenant was asking for \$20 million. Karola and [REDACTED] were also named in the lawsuit. The Respondent explained that [REDACTED] was named in the suit because he was listed as a management agent for the property. That day or the following day, the Respondent showed the papers to [REDACTED] [RX K is a copy of the court documents.]

Although the Respondent told her not to worry about it, [REDACTED] became very upset. It was less than a week later that the Respondent received a telephone call from [REDACTED] informing him of [REDACTED]'s allegations. The first time he spoke to [REDACTED] about the allegations was in the controlled telephone conversation on May 10, 2006. He did not know at the time that the call was being recorded. He stated that he could not believe what [REDACTED] was saying.

[REDACTED]'s allegations resulted in the Respondent being arrested for two misdemeanors. Right before trial, he accepted an offer that he plead guilty to disorderly conduct. He explained that he took the offer to put an end to the situation because he did not want to deal with it any longer. As part of the plea, he did not have to make an admission that he touched or grabbed [REDACTED].

The Respondent testified that he bought the A-15 rifle on Long Island right after September 11, 2001 in anticipation of receiving special weapons training. At the time, he believed that he was allowed to keep the weapon with him wherever he went because he is a police officer. Because there was a burglary in his house in 2002, he believed that his locker at work was the safest place to store the gun.

On cross-examination, the Respondent testified that [REDACTED] did not have a financial interest in the three-family house or any sort of financial liability in the lawsuit. The Respondent, nevertheless, believes that [REDACTED] made allegations against him because of the lawsuit. The lawsuit is still pending. The Respondent stated that when he spoke to [REDACTED] on the telephone on May 10, 2006, he did not know that the Department was involved in the situation. He never told [REDACTED] that he did not want to talk on the telephone because he was afraid he would be recorded.

The Respondent testified that there were times that he was alone with [REDACTED] in

her bedroom when she was a child. Although he never put her head in the toilet, he did put her hair in the toilet as a punishment when she was mean to her sister. He also smacked her on the buttocks from time to time when she misbehaved. It was not something he did on a regular basis. Although he sometimes made rude or sarcastic remarks to [REDACTED] he never made comments about her breasts or other body parts. [REDACTED] used to babysit [REDACTED] when [REDACTED] was born. The Respondent went to the [REDACTED] house for Thanksgiving on November 25, 2005. At one point that day, he went upstairs to [REDACTED]'s bedroom and jumped on her bed. There was never an incident where the Respondent placed a firearm in his mouth or threatened a family member with a weapon.

On redirect examination, the Respondent testified that he jumped on [REDACTED] bed because he was playing with [REDACTED]'s dog. [REDACTED] was not on the bed at the time.

FINDINGS AND ANALYSIS

Specifications Nos. 1 – 4 and 6 – 12

The Respondent stands charged with engaging in oral sexual conduct and sexual contact with his half-sister when she was less than 11 years of age; committing a course of sexual conduct against a child; threatening to kill his sister; twice forcibly touching his sister's sexual or intimate parts; twice subjecting his sister to sexual contact without her consent; and engaging in conduct prejudicial to the good order, efficiency, or discipline of the Department in that he once inappropriately touched his sister's breast and on another occasion touched her buttocks. This case arose in May 2006 when the Respondent's mother, [REDACTED] reported to a rape hotline that the Respondent had committed some sort of sexual abuse against his half-sister, [REDACTED]. In an IAB interview, [REDACTED]

claimed that the Respondent started to sexually abuse her when she was five or six years old, which would have been in approximately 1987. According to [REDACTED] the Respondent would ask her to kiss him, masturbate him, and perform oral sex on him. This abuse occurred periodically, possibly once or twice a month. [REDACTED] claimed that the Respondent forced her to perform oral sex on him numerous times and the last time she actually performed oral sex on him was when she was six or seven years old. Moreover, according to [REDACTED], the Respondent once told her that he would kill her if she told anybody about the abuse and that caused her to live in fear of him. [REDACTED] also claimed that she lived in fear of him. This Court, however, finds, that while [REDACTED] and [REDACTED] both claimed to be in fear of the Respondent, they nevertheless lived with him, first in a small apartment with his wife and child and then in a separate apartment in a house that the Respondent subsequently owned and lived in. [REDACTED]'s husband even loaned the Respondent \$5000 to help with the payment for the house. Therefore, their longtime voluntary close living arrangements with the Respondent casts considerable doubt as to the veracity of their fear of him.

[REDACTED] also told IAB investigators that the Respondent has touched her inappropriately in more recent years. She specifically claimed that the Respondent grabbed her breasts in July 2005 and grabbed her buttocks in November 2005. [REDACTED] repeated these claims about the Respondent touching her breasts and her buttocks on DIRs and criminal court depositions. She also repeated her claim about the Respondent touching her buttocks in an interview with the Assistant District Attorney. [REDACTED] has not, however, offered live courtroom testimony about her allegations in any forum, including this one, in spite of the fact that she was subpoenaed by the Department.

In addition to [REDACTED]'s hearsay statements, the Department provided the hearsay statements of [REDACTED]'s sister, A [REDACTED], and best friend, [REDACTED]. [REDACTED] told IAB that she observed the Respondent brush up against [REDACTED] and whisper things in her ear that made her upset. [REDACTED] told IAB that although she never saw the Respondent touch [REDACTED] inappropriately, [REDACTED] told her approximately a year earlier that the Respondent had touched her when she was younger. Like [REDACTED] A [REDACTED] and [REDACTED] ignored Department subpoenas and opted not to appear at trial, as did [REDACTED] and the Respondent's other half-sister, [REDACTED].

All of the hearsay statements submitted by the Department were incorporated into the record through Noonan, the IAB investigator on the case. Noonan testified that because [REDACTED] was an alleged sex abuse victim, he treated her with "kid gloves" during their interview. He stated that neither he nor the Assistant District Attorney who subsequently interviewed [REDACTED] subjected her to cross-examination. He further stated that although he was trained to interview witnesses separately to see if their stories were consistent, [REDACTED] and another male (possibly [REDACTED]'s father) were present during [REDACTED]'s interview and [REDACTED] interjected numerous statements while [REDACTED] was being interviewed.

The only other live witness put on by the Department was Lewittes, an expert witness in psychology and sex abuse, who explained the stages of child sex abuse syndrome. While the Court cannot help but notice a correlation between the circumstances described by [REDACTED] and the syndrome as set forth by Lewittes, the usefulness of Lewittes' testimony is diminished by the fact that he never met with [REDACTED] or any of the other parties involved in this case. Although Lewittes testified that it would be unusual for a party to make a false allegation regarding something that happened 20

years earlier, he later clarified that this conclusion was based on an assumption that the alleged victim was thinking rationally. Unfortunately, neither Lewittes nor this Court was given any basis on which to judge [REDACTED]'s rationality which might have supported the veracity of her hearsay statements.

It has long been accepted that hearsay is admissible in administrative proceedings and a disciplinary finding may rest upon hearsay alone, People Ex. Rel Vega v. Smith, 66 N.Y.2d 130 (1982). In her summation, the Assistant Department Advocate cited Fazzone v. Adduci, 155 A.D.2d 540 (1989) to assert that a finding of guilt can be based on hearsay when the hearsay evidence is "sufficient, trustworthy, relevant, and probative." In the current case, however, the hearsay evidence presented by the Department was none of these things. As in all hearsay cases, the witness' failure to testify deprived the Court of the opportunity to observe their demeanor, explore biases or possible motives to lie, or assess the credibility of their accounts tested under cross-examination. This is especially problematic in the current case since it is entirely based on [REDACTED]'s statements and, as discussed above, these statements were not subjected to scrutiny at any point during the investigation. Moreover, the Department was unable to provide any sort of independent corroboration of [REDACTED]'s allegations. The hearsay statements given by [REDACTED] and [REDACTED] show that none of these witnesses actually observed the abuse alleged by [REDACTED]. All they knew of the alleged abuse was what [REDACTED] told them.

In contrast to the Department's weak hearsay case, the Respondent called live witnesses who actually knew [REDACTED] and observed her interaction with the Respondent. Karola has known [REDACTED] since she was twelve and lived in the same house with her for years. For a period, they even shared a tiny basement apartment. Karola and [REDACTED] were

close and used to talk about personal problems. [REDACTED] never told Karola anything about the Respondent abusing her or acting inappropriately. Possibly more tellingly, Karola never noticed anything out of the ordinary about the Respondent's relationship with [REDACTED]. Karola never saw [REDACTED] hesitate to go near the Respondent. Nor did she see [REDACTED] act differently when the Respondent was present. Similarly, Figueroa, a family friend who has known [REDACTED] since she was five, testified that she and [REDACTED] used to discuss a lot of personal issues. Not only has Figueroa never seen the Respondent touch [REDACTED] inappropriately, but [REDACTED] never conveyed to Figueroa in any way that she was afraid of the Respondent or did not want to spend time with him.

The May 10, 2006 controlled telephone call is also consistent with a conclusion that the Respondent did not commit the abuse of which [REDACTED] has accused him. There is no reason to believe that the Respondent knew the call was being recorded, and he seemed genuinely shocked by the allegations. Although the Respondent admitted in the telephone call that he has made rude comments to [REDACTED] and has slapped her buttocks, there was simply no convincing evidence (hearsay or otherwise) to suggest that the physical contact between the Respondent and [REDACTED] went beyond brotherly affection or teasing. This conclusion is not incompatible with the Respondent's guilty plea to disorderly conduct in criminal court since the plea did not involve the Respondent making any sort of admission of inappropriate physical contact with [REDACTED]. As the Respondent understandably explained, he took the offer simply to put an end to the situation because he did not want to deal with it any longer.

Furthermore, the Respondent explained in his testimony how [REDACTED] and the rest of the [REDACTED] family had motive to fabricate allegations of misconduct against him.

According to the Respondent, a family feud of sorts began when he and his step-father, [REDACTED] were named as defendants in a lawsuit brought by tenants in the Brooklyn house he owns. The Respondent testified that although [REDACTED] does not have any financial liability in the lawsuit, [REDACTED] became very upset by the fact that [REDACTED] was named on the court documents. He believes that [REDACTED] made allegations against him because of the lawsuit. Because [REDACTED] and her family did not appear at trial, the Court was unable to properly scrutinize this suspected motive to lie. It does perhaps explain, however, why [REDACTED] in the midst of her daughter's IAB interview about being sexually abused, would start talking about the lawsuit. Similarly, the Court cannot help but note that [REDACTED] who had allegedly suffered abuse at the hands of the Respondent off and on for a period of nearly 20 years, came forward for the first time with her accusations less than a week after [REDACTED] learned of the lawsuit. Moreover, even Lewittes conceded that it is possible for somebody to be pressured by her parents into making a false allegation of abuse.

Based on all of the foregoing, the Respondent is found Not Guilty of these specifications. In addition, because the Respondent was found Not Guilty this Court finds it unnecessary to address any of the legal arguments concerning statute of limitations/ pre-employment misconduct.

Specification No. 5

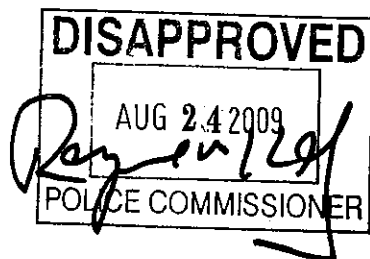
The Respondent stands charged with engaging in conduct prejudicial to the good order, efficiency, and discipline of the Department, in that he maintained in his possession a rifle that is defined as an "Assault Weapon" in the New York City Administrative Code. The Respondent testified that he purchased the A-15 rifle right after September 11, 2001 in anticipation of receiving special weapons training, and he

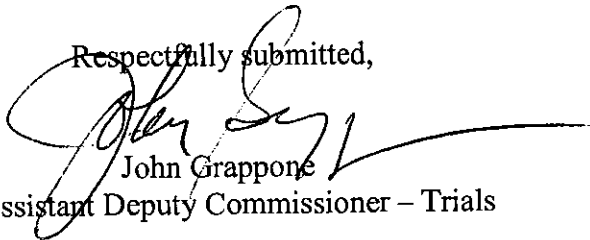
believed that he was allowed to keep it with him wherever he went because he is a police officer. Noonan explained that the Respondent was mistaken in his belief since the A-15 rifle is, in fact, an assault weapon, and the Administrative Code makes it unlawful to possess these weapons within New York City. The Respondent would not have been charged with misconduct had he stored the rifle in Westchester or Long Island. Because he stored the weapon in his locker in his Brooklyn command, however, he is found Guilty of this specification.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222, 240 (1974). The Respondent was appointed to the Department on June 30, 1992. Information from his personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

The Respondent has been found Guilty of engaging in conduct prejudicial to the good order, efficiency, and discipline of the Department, in that he maintained in his possession a rifle that is defined as an "Assault Weapon" in the New York City Administrative Code. In Disciplinary Case No. 80651/05, a nineteen-year member with no prior disciplinary record forfeited eight vacation days for carrying and neglecting to properly safeguard an unauthorized off-duty firearm. In light of the Respondent's record in the current case, I recommend that he forfeit ten vacation days.



Respectfully submitted,

John Grappone
Assistant Deputy Commissioner – Trials